

Smt. Sarjoo Devi v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 13 March 2023 · Writ - C No. 6366 of 2023 · **Disposed; fresh order after notice under Supply Code assessment procedure.**

HEADNOTE

Theft-dues recovery certificate dated 8 April 2021 withdrawn by the licensee. Writ disposed with liberty to pass a fresh order, after due notice, strictly in accordance with the assessment procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Sarjoo Devi petitioned the Allahabad High Court against U.P. Power Corporation Ltd. and four others, challenging a recovery certificate dated 8 April 2021 issued by respondent no. 2 for dues said to arise from theft of electricity. On 24 February 2023 the Division Bench adjourned the writ so departmental counsel could show that the assessment procedure under the U.P. Electricity Supply Code, 2005 had been followed. On 13 March 2023 counsel stated that the recovery had been withdrawn and that a fresh order would be passed after due notice.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

Fresh order after withdrawal of a theft recovery certificate

HOLDING

On the licensee's statement that the recovery certificate dated 8 April 2021 for electricity-theft dues stood withdrawn, the writ was disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the assessment procedure prescribed under the U.P. Electricity Supply Code, 2005, after due notice to the consumer. ¶ 2

FLAG No clause number is stated. The order refers only to the procedure prescribed for assessment under the Code.

PRINCIPLE TAGS

UP-2005::assessment Once a theft-dues recovery certificate is withdrawn, the writ is disposed and any fresh order must follow the Supply Code assessment procedure and be passed after due notice. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS LIABLE FOR THEFT OF ELECTRICITY, AND THE QUANTUM OF ANY DUES UNDER A LAWFUL ASSESSMENT.

The impugned recovery was withdrawn. Compliance of the original assessment with the Code was not examined. A fresh order was left to the licensee. ¶ 2